

2:00 PM

LINE 8

25-CLJ-07707

TD BANK USA, N.A. VS. JANNETTE MADARANG

TD BANK USA, N.A.
JANNETTE MADARANG

DANIEL ODITT
PRO SE

MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff's unopposed motion for judgment on the pleadings is denied without prejudice.

The notice of motion, plaintiff put the date of June 30, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026, and the location was corrected to show that the hearing would be in Department 4 rather than in Department 18 as plaintiff noticed the motion. The court file shows a proof of service filed May 20, 2026 of the motion showing service of the motion on defendant on May 20, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 20, 2026 proper notice of the July 14, 2026 hearing and proper department to defendant. There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date or location. (Cal. Rules of Court, rule 3.1110(b)(1).) Accordingly, defendant does not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

The court strikes the prematurely filed memorandum of costs. The memorandum of costs is filed after judgment is entered.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

DEMURRER TO CROSS-COMPLAINT OF MICHAEL HARBOUR AND ANDRES MEDIAVILLA

TENTATIVE RULING:

Cross-Defendants Tremin Corporation's and Derek Gray's demurrer to the Cross-Complaint of Cross-Complainants Michael Harbour and Andres Mediavilla filed April 23, 2026, is **SUSTAINED IN PART and OVERRULED IN PART**. Leave to amend is **GRANTED**.

Defendants' Request for Judicial Notice of Cross-Complainants Michael Harbour's and Andres Mediavilla's Cross Complaint filed in San Mateo County Superior Court on April 23, 2026, attached to the declaration of counsel Patrick J. Whitehorn as Exhibit A in support of their Demurrer to Cross-Complaint of Michael Harbour and Andres Mediavilla, is **GRANTED**. (Evid. Code § 452, subd. (d).)

A. Background

This is a breach of construction contract action regarding work done by plaintiff/cross-defendants, a builder and general contractor on real property owned by defendants/cross-complainants at 29 De Bell Drive, Atherton, CA 94122 (the "subject property").

On or about December 9, 2021, plaintiff orally agreed with defendants to furnish all labor, materials, equipment and other facilities required to complete work making significant improvements to the subject property based on plans supplied by Harbour and prepared by his architect. Between December 9, 2021, and November 5, 2025, Tremin substantially performed work at the subject property but was not paid in full. Therefore, on November 5, 2025, Tremin recorded a mechanic's lien against the subject property for the unpaid amounts. On February 2, 2026, plaintiff filed the underlying complaint which raises four causes of action.

On April 23, 2026, Defendants Harbor and Mediavilla filed a cross-complaint alleging violations of Business and Professions Code section 7159; violation of Business and Professions Code section 17200; Fraud; Negligent Misrepresentation and Declaratory Relief. The cross-complaint alleges that Tremin and Gray (in his individual capacity) violated the Home Improvement Contract Act under Business and Professions Code § 7159 by failing to have a written contract and other requirements and thus engaged in unfair business practices. Defendants/Cross-Complainants Harbor and Mediavilla further allege that Tremin and Gray falsely represented in 2021 that they would reduce the project cost through a value engineering exercise, failed to
